

action in the FAC, but rather adds details to the Complaint to clean up the pleading in areas that were previously less than unclear in the original.

13. *Jackson v. Robinson, et al*, Case No. CIVSB2606811

Demurrer

8/5/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the matter so that Defendant may satisfy the meet-and-confer requirements.

Prior to a demurrer, a party is required meet and confer in person or by telephone or by video conference with the party who filed the pleading for purposes of “determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41(a) [demurrer].)

Here, the supporting declaration does not confirm compliance with the meet-and-confer requirements. (See Beard Decl.) Rather, the declaration sets out that an email with a *request* to meet and confer. (Beard Decl., ¶2.) Later, a follow-up email was sent without any response. (Beard Decl., ¶5.) The declaration fails to indicate any attempt to contact in person, by telephone, or by video. It also fails to adequately set out any frustrated attempt at such compliance. The Court would continue the matter to allow a supplemental declaration showing compliance. Defendant will file a supplemental declaration at least ten court days before the next hearing.

15. *Morales v. VPET USA, LLC, et al*, Case No. CIVSB2108161

Plaintiff’s Motion for Preliminary Approval of Class Action Settlement

8/5/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the matter to allow Plaintiff to pay the motion filing fee.

Notice from the Court was sent on July 31, 2026, indicating that payment of the filing fees was due at least one day prior to the hearing. As of the time of this tentative, the filing fees have not yet been received.
